

		parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration. (9 U.S.C., § 3.) Therefore, the court must grant the motion to stay these proceedings. Defendant shall give notice of this ruling.
3	Roushanzamir vs. Sierra 30-2025-01510882	<u>Motion to Compel Arbitration</u> Defendant Progressive Insurance Company's Motion to Compel Arbitration and Stay Civil Proceedings is DENIED without prejudice. <u>Pending Motion</u> Defendant Progressive Insurance Company moves to stay this action with respect to Plaintiff Ali Roushanzamir's claims against Defendant Progressive "until completion of contractual arbitration of the underlying Uninsured Motorist claim." (Def. Progressive's Mot. to Compel Arbitration and Stay Civil Proceedings [ROA #44] at p. 1:23-27.) <u>Prior Proceedings</u> On April 27, 2026, the court determined that Defendant Progressive had failed to properly serve Plaintiff with the motion papers, as required by Civil Procedure Code section 1005 and 1010.6. (See ROA #42 at pp. 1-2.) The court ordered that Defendant Progressive serve Plaintiff in a manner permitted by the Civil Procedure Code. Defendant Progressive filed the motion papers with a proof of service showing that Plaintiff had been properly served by regular mail. (See ROA #44 at p. 105.) Therefore, the court will address the motion on the merits. <u>Compelling Arbitration</u>

		Defendant Progressive titles this motion as "Defendant Progressive Insurance Company's Motion to Compel Arbitration and Stay Civil Proceedings." (<i>Id.</i> at p. 1:12-16.) In addition, in its memorandum of points and authorities, Defendant Progressive states that it "seeks to (1) compel this matter to binding contractual arbitration; and (2) stay the instant civil action per Code of Civil Procedure §1281.4." (<i>Id.</i> at p. 3:11-12.) However, in its notice of motion, Defendant Progressive does not request that the court order arbitration. (See <i>id.</i> at pp. 1-2.) Further, in its memorandum of points and authorities, Defendant Progressive asserts that Plaintiff is "<i>already [] engaged in active arbitration</i> with Progressive over his UM personal injury claims." (<i>Id.</i> at p. 4:25-27, italics original.) Thus, it is not clear whether Defendant Progressive is seeking an order compelling arbitration. To the extent that it is, the court denies the motion as Defendant Progressive has failed to meet its burden of showing that it is entitled to compel arbitration. (See <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [party seeking to compel arbitration bears burden of establishing basis of right to arbitration].) <u>Staying Pending Court Action</u> Civil Procedure Code section 1281.4 provides: If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. If an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State
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		and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. (Code Civ. Proc., § 1281.4.) The Court of Appeal has interpreted Section 1281.4 to mean that "[a]ny party to a judicial proceeding 'is entitled to a stay of those proceedings whenever (1) the arbitration of a controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.'" (<i>Heritage Provider Network, Inc. v. Superior Court</i> (2008) 158 Cal.App.4th 1146, 1152, quoting <i>Marcus v. Superior Court</i> (1977) 75 Cal.App.3d 204, 209.) This means that, as a general matter, if the court grants the motion to compel arbitration, it must stay the court action until completion of the arbitration. (See <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 620 [if court orders arbitration, "it must also stay proceedings on the claims until completion of arbitration"].) "The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." (<i>Federal Ins. Co. v. Superior Court</i> (1998) 60 Cal.App.4th 1370, 1374.) The concern is that, "[i]n the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (<i>Id.</i> at p. 1375.) Here, while Defendant Progressive contends that Plaintiff has already engaged in active arbitration, Defendant Progressive provides no evidence of this. The declaration of Defendant Progressive's counsel, the only evidence provided by Defendant Progressive in support of its motion, only attaches the Complaint for Damages (Complaint) filed by Plaintiff in this action. (See Decl. of Kenny C. Brooks [ROA #44], ¶ 2, Exh. 1.) However, the Complaint only alleges that:
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		Notwithstanding Plaintiff's repeated efforts to resolve his bodily injury claim in good faith, Defendant Progressive has wholly failed to offer any settlement or payment for Plaintiff's substantial medical expenses, lost wages, or pain and suffering, all of which fall squarely within the scope of the UM/UIM bodily injury coverage. Plaintiff has complied with all requirements of the policy, including submitting to the contractual arbitration process, yet Progressive has continued to act in bad faith by refusing to settle Plaintiff's bodily injury claim. (<i>Id.</i>, Exh. 1, ¶ 30.) It is not clear from this sentence whether Plaintiff is engaged currently in arbitration or whether Plaintiff is <i>willing</i> to engage in arbitration. Further, the Complaint is unverified and therefore, does not constitute evidence. At best, the Complaint estops Plaintiff from making assertions inconsistent with the Complaint. It is not sufficient, by itself, to establish that Plaintiff is engaged in arbitration with Defendant Progressive. Finally, Defendant Progressive fails to provide evidence as to what issues have been submitted to arbitration and the Complaint is silent on this issue. Therefore, there the court cannot determine whether the arbitration proceedings are "of a controversy" that "is an issue involved in an action or proceeding pending before [this] court." (Code Civ. Proc., § 1281.4.) Defendant Progressive has failed to establish that Plaintiff has been ordered to engage in arbitration or is engaged in arbitration of a controversy that is an issue before this court. Accordingly, the court will deny the motion. The court clerk shall give notice of this ruling.
4	Sunday vs. Kazweeny 30-2025-01476760	<u>Demurrer</u> Defendants eXp Realty of Southern California, Inc.'s; Jason D. Crawford's; Anita Cruz's; and Michale Scott